

May 11, 2009



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 10603
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of a non-DOT specification cylinder conforming with all regulations applicable to a DOT 3AA specification cylinder, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301a, 173.302a, 173.304a, 175.3, 178.45 in that non-DOT specification cylinders are not authorized, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Nonliquefied compressed gases, or mixtures of such compressed gases, classed as Division 2.1, (flammable gas) Division 2.2, (nonflammable gas) or Division 2.3, (gases which are Poisonous by Inhalation (PIH)) which are authorized in the Hazardous Materials Regulations to be transported in DOT 3AA specification cylinders, except that the following are not authorized: (a) Hydrogen, compressed natural gas, hydrogen sulphide, or carbon monoxide; (b) Any gas mixture containing free sulphides, or hydrogen, or compressed natural gas; (c) Any gas mixture containing more than 10% carbon monoxide; (d) Any gas mixture containing carbon monoxide and having a dew point higher than minus 52°F at one atmosphere; (e) Any gas or mixture of gases which does not remain in gaseous state when contained in the cylinder at 70°F and rated filling pressure; and	As appropriate	As appropriate	N/A

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Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
(f) Any mixture of gases, the quantity of one or more of which is capable of combining chemically with other gases in such a mixture; or can cause cylinder material degradation by corrosion, stress corrosion, embrittlement, or enhanced fatigue crack growth	As appropriate	As appropriate	N/A

7. SAFETY CONTROL MEASURES:

a. § 178.35(e) *Pressure relief devices and protection for valves and pressure relief devices.*

(Add)

Pressure relief devices must be in compliance with § 173.302(b)(1), except as follow:

(1) Cylinders charged with gas mixtures containing any gas classed as Division 2.3 Hazard Zone A must not be equipped with any pressure relief device.

(2) Cylinders charged with gas mixtures that do not contain a hazardous material classed as Division 2.3, must be equipped with a combination rupture disk and fusible plug pressure relief device in compliance with CGA Pamphlet S-1.1.

§ 178.37(a) *Type, size and service pressure*

(1) Seamless, 120 pounds maximum water capacity, 0.250 inch minimum wall thickness and a service pressure not to exceed 5000 psig.

(2) Not applicable.

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§ 178.35(f) *Marking.*

Applies except:

(1) The marking "DOT-3AA" is replaced by "DOT-SP 10603".

(2) Test pressure must be marked near or following service pressure as "TP" followed by the test pressure.

(3) Rejection elastic expansion (REE) in cubic centimeters (CC) must be marked near the date of test.

b. Each cylinder must be reinspected and hydrostatically retested every five years in accordance with § 180.205, as prescribed for DOT 3AA specification cylinders except that the test pressure is 3/2 times the service pressure. Retest dates must be stamped on the cylinder neck (see § 180.213(d)). Reheat treatment or repair of rejected cylinders is not authorized. When a hydrostatic retest is repeated as provided for in § 180.205(g), only two such retests are permitted. Cylinders, requalified after having been subjected to the actions of fire, must be reported to the OHMSPA prior to shipment.

c. No new manufacture is authorization after June 30, 2007.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

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- d. Cylinders authorized by this special permit may not be used for transportation of gases or gas mixtures that would cause hydrogen embrittlement.
- e. Filling limits specified in § 173.302(c) are not authorized. Under no circumstances are these cylinders to be filled to a pressure exceeding the marked service pressure at 70°F.
- f. Transportation of Division 2.1, (flammable gases) and Division 2.3, (gases which are poisonous by inhalation) are not authorized aboard cargo vessel or aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).
- g. Reports: A report of the results of tests required by this special permit must be retained by the manufacturer indefinitely as long as the cylinders manufactured under this special permit are authorized, and must be made available to an authorized DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only (See paragraph 8.f. of this special permit).
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KFW/am